

SENATE BILL 408

By Bailey

AN ACT to amend Tennessee Code Annotated, Title 29,
Chapter 20, relative to governmental tort liability.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 29-20-107(h), is amended by deleting the subdivision and substituting:

(h)

(1) A governmental entity or local board of education shall not extend the immunity granted by this chapter to independent school bus contractors in performing or providing school-related transportation services to a local board of education.

(2) The contract or agreement between a local board of education and an independent school bus contractor must require sufficient limits for tort liability exposures as required by applicable law related to performing or providing school-related transportation services to the local board of education by the contractor. Evidence of such coverage may include, without limitation, a certificate of insurance from the provider of insurance coverage that has the local board of education listed as an additional insured.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.